

Amendment No. 2 to HB1497

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1630

House Bill No. 1497*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 6-20-102, is amended by deleting the section.

SECTION 2. Tennessee Code Annotated, Section 6-31-102, is amended by deleting the section.

SECTION 3. Tennessee Code Annotated, Section 6-54-138, is amended by deleting the section.

SECTION 4. Tennessee Code Annotated, Title 6, Chapter 53, is amended by adding the following as a new section:

(a) Notwithstanding any private act of a municipality to the contrary, the legislative body of each municipality shall change the date of municipal elections such that the municipal elections coincide with the regular August or regular November election, as those terms are defined in § 2-1-104, prior to the 2030 election cycle.

(b) The ordinance changing the election date must provide for the extension or contraction of the terms of the elected officials of the municipality necessary to meet the election date, but no term may be extended or contracted by more than two (2) years from its regular expiration date. When the dates of a municipality's elections are changed pursuant to subsection (a), the presiding officer of the legislative body shall file a certified copy of the ordinance with the state coordinator of elections.

(c) This section does not authorize the removal of an incumbent from office or abridge the term of any incumbent prior to the term for which an elected official was elected.

(d)

(1) Except as provided in subdivision (d)(2), the first election in a municipality that is chartered after the effective date of this act must be held with an upcoming regular primary or general election being held in the jurisdiction. If the election at which a charter under this title is adopted occurs on or before ten (10) days before the regular qualifying deadline, then the regular qualifying deadline applies. If the election occurs less than ten (10) days before the regular qualifying deadline, independent candidates and candidates nominated by any political party must qualify no later than twelve o'clock (12:00) noon, prevailing time, fifty-five (55) days before the election. If the qualifying deadline is the fifty-fifth day before the election, candidates must withdraw no later than twelve o'clock (12:00) noon, prevailing time, fifty-two (52) days before the election.

(2) If an election to incorporate is held on the regular November election and the majority of the votes cast are in favor, then the first election in the newly incorporated municipality must be held as a special election under title 2, chapter 14.

(3) After an initial election is held pursuant to subdivision (d)(1) or (d)(2), the legislative body of the municipality shall fix the date of all subsequent elections to coincide with the regular August or regular November election, as those terms are defined in § 2-1-104.

SECTION 5. Tennessee Code Annotated, Title 7, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) Notwithstanding a provision of a metropolitan charter to the contrary, the legislative body of each metropolitan government shall change the date of the

metropolitan government elections such that the elections coincide with the regular August or regular November election, as those terms are defined in § 2-1-104, prior to the 2030 election cycle.

(b) The ordinance changing the election date must provide for the extension or contraction of the terms of elected officials necessary to meet the election date, but no term may be extended or contracted by more than two (2) years from its regular expiration date. When the dates of elections are changed pursuant to subsection (a), the presiding officer of the legislative body shall file a certified copy of the ordinance with the state coordinator of elections.

(c) This section does not authorize the removal of an incumbent from office or abridge the term of any incumbent prior to the term for which an elected official was elected.

SECTION 6. Tennessee Code Annotated, Section 6-1-202(a), is amended by deleting the language "not less than forty-five (45) days nor more than sixty (60) days after the petition is certified. The date of the election shall be set in accordance with § 2-3-204." and substituting instead "at the next election, as defined in § 2-1-104."

SECTION 7. Tennessee Code Annotated, Section 6-1-202(b), is amended by deleting the language "thirty (30) days" and substituting instead "ninety (90) days".

SECTION 8. Tennessee Code Annotated, Section 6-1-204(b), is amended by deleting the language "in accordance with § 2-8-105(3) within forty-eight (48) hours after the election." and substituting instead "in accordance with title 2, chapter 8, part 1."

SECTION 9. Tennessee Code Annotated, Section 6-1-207(a), is amended by deleting the subsection and substituting instead:

(a) The county election commission shall call an election pursuant to SECTION 4(d), following the election for adoption of this charter, at which time municipal officials are chosen to take office immediately following the election.

SECTION 10. Tennessee Code Annotated, Section 6-1-304, is amended by deleting the language "not more than sixty-two (62) days" in subsection (a) and substituting instead "pursuant to SECTION 4(d)"; and is further amended by deleting subsection (c).

SECTION 11. Tennessee Code Annotated, Section 6-18-104(b), is amended by deleting the language "thirty (30) days" and substituting instead "ninety (90) days".

SECTION 12. Tennessee Code Annotated, Section 6-18-105(c), is amended by deleting the language "within forty-eight (48) hours after it completes its duties under § 2-8-105(3)" and substituting instead "in accordance with title 2, chapter 8, part 1".

SECTION 13. Tennessee Code Annotated, Section 6-18-111, is amended by deleting the language "not less than forty (40) days nor more than fifty (50) days" in subsection (a) and substituting instead "pursuant to SECTION 4(d)"; and is further amended by deleting subsection (b).

SECTION 14. Tennessee Code Annotated, Section 6-20-201(a)(3)(A), is amended by deleting the language ", as the board of commissioners directs the county election commission to hold under § 6-20-102".

SECTION 15. This act takes effect upon becoming a law, the public welfare requiring it.